

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 07/22/26      TIME: 1:30 P.M.      DEPT: H      CASE NO: CV0006520

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

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PLAINTIFF:      LVNV FUNDING LLC

vs.

DEFENDANT: JEROME SANTOS

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NATURE OF PROCEEDINGS: MOTION – RELIEVE COUNSEL

**RULING**

Counsel Andrew Gramajo filed a motion to be relieved as counsel. His declaration does not state that he has served the client with copies of the motion papers. Notice is therefore insufficient and the motion is denied without prejudice.

***All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.***

***The Zoom appearance information for July, 2026 is as follows:***

***<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjiEOSHNgEGafG.1>***

Meeting ID: 161 548 7764

Passcode: 502070

***If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>***

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 07/22/26      TIME: 1:30 P.M.      DEPT: H      CASE NO: CV0009335

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

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PLAINTIFF:      LINK HOLDINGS, LLC

vs.

DEFENDANT: CITY OF SAUSALITO, A  
MUNICIPAL CORPORATION, ET AL

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NATURE OF PROCEEDINGS: DEMURRER

**RULING**

The Demurrer of Respondent City of Sausalito (“City”) and Real Parties-in-Interest Kostas Kassaras and Kathy Pappas-Kassaras (“Real Parties”) is SUSTAINED with leave to amend.

**REQUESTS FOR JUDICIAL NOTICE**

The City and Real Parties’ Request for Judicial Notice No. 1 is GRANTED. (Evid. Code, § 452, subd. (d).)

Petitioner’s Requests for Judicial Notice A-C are GRANTED. (Evid. Code, § 452, subds. (b), (c).) Request D is DENIED.

**LEGAL STANDARD**

Demurrers are permitted in writ of mandate proceedings. (Code Civ. Proc., § 1108, 1109.) A demurrer tests the sufficiency of a pleading, and the grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (Code Civ. Proc., § 430.30, subd. (a); *Blank v. Kirwan*, (1985)39 Cal.3d 311, 318.) The face of the pleading includes attachments and incorporations by reference (*Frantz v. Blackwell*, (1987) 189 Cal.App.3d 91, 94.)

The sole issue on demurrer for failure to state a cause of action is whether the facts pleaded, if true, would entitle the plaintiff to relief. (*Garcetti v. Superior Court*, (1996) 49 Cal.App.4th 1533, 1547; *Limandri v. Judkins*, (1997) 52 Cal.App.4th 326, 339.) The ultimate facts alleged in the complaint must be deemed true, as well as all facts that may be implied or inferred from those expressly alleged. (*Marshall v. Gibson, Dunn & Crutcher*, (1995) 37 Cal.App.4th 1397, 1403.) Nevertheless, this rule does not apply to allegations expressing mere